IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
PRINCIPAL BENCH

ITEM No. 149
(CAA)-27(PB)/2018

IN THE MATTER OF:
AB Medicos Pvt. Ltd. and
Rockland Pvt. Ltd. .... Applicant/petitioner

Order under Section 230-232

Order delivered on 05.04.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENTS:

For the Petitioner	Mr. K. Datta, Ms. Prachi Johri, Mr. Ashutosh Gupta, Mr. Gaurav Rana, Mr. Abhishek Aggarwal & Mr. Rahul Gupta, Advs.
For the RD	Mr. C. Balooni, CP
For the SFIO	Ms. Natasha Barkar, CP
For the IO	Mr. Jagmohan Hooda, IO
Deputy Director	Mr. Anupam Vashishta
For the AD(CL)	Mr. Paramveer Bhatti, AD
For the ITD	Mr. Deepak Anand & Mr. Aayushmaan, Advs. for ITD

ORDER

We have perused the 'sealed cover submission' made by Mr. Jagmohan Hooda, Investigation Officer/Senior Assistant Director, SFIO filed on 07.02.2019. According to the sealed cover submission, a large number of transferor companies have received consideration against their shareholding and still the shareholding in Rockland Hospital Limited is being shown in their last audited financial results. In a nutshell, the statement made by Mr. Shrivastava before the Settlement Commissioner is stated to be an admission with regard to violation of tax laws. Therefore, request has been made that in such

a situation, the prayer for merger before this Tribunal on the basis of falsified accounts in the past, and abetting the RHL in the siphoning of the funds resulting in violation of the provisions of Company Law, needs to be investigated further.

Faced with the aforesaid situation, Mr. Datta, Ld. Counsel for the petitioner requests for some more time to address arguments.

The sealed cover submission be resealed and kept in safe custody by the Bench Officer.

List on 09.05.2019.

Sd/-

(M.M.KUMAR)
PRESIDENT

Sd/-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

05.04.2019
Ritu Sharma